Direct Marketing Policy

Statement:

Squaricle Group views privacy, security and responsible marketing as integral to the business. This policy supports compliance with the UK GDPR, Data Protection Act 2018 and Privacy and Electronic Communications Regulations 2003.

This policy applies to all direct marketing activity carried out by or on behalf of Squaricle Group, including email, text, social media direct messages, telephone marketing, postal marketing, cookies, tracking technologies and online advertising.

1.1 A point of reference for staff to understand marketing policies and to outline the procedures of marketing activities.

1.2 To state the correct procedures and what is expected of stakeholders if marketing support is required.

1.3 To ensure good practice within the Marketing Team.

1.4 To ensure consistency through all Squaricle Group marketing activities.

Consent:

2.1 Before any marketing activity, Squaricle Group must identify both: (1) the UK GDPR lawful basis for processing personal data; and (2) the PECR permission for the marketing channel. Legitimate interests may be appropriate under UK GDPR, but PECR consent or a valid soft opt-in may still be required.

2.2 Where Squaricle Group relies on legitimate interests for marketing, a Legitimate Interests Assessment must be completed and retained before the campaign begins.

Marketing by Email, messaging or Text:

3.1 Before sending email, text or direct-message marketing, Squaricle Group must identify whether the recipient is an individual subscriber or corporate subscriber. Individual subscribers, including consumers, sole traders and some

partnerships, must not receive unsolicited electronic marketing unless they have consented or the PECR soft opt-in applies.

3.2 The soft opt-in may only be used where Squaricle Group obtained the contact details directly from the person, in the context of a sale or negotiation for similar products or services, gave a clear opt-out at the time details were collected, gives a clear opt-out in every message, and the person has not opted out. Every marketing email, text or direct message must clearly identify Squaricle Group and include a simple, free and effective unsubscribe or opt-out method, such as an unsubscribe link or clearly monitored reply address

3.3 Where an individual opts out, Squaricle Group will promptly suppress them from future marketing for the relevant channel or purpose. Suppression records will be retained only as long as necessary to respect the opt-out.

3.4 Squaricle Group will not use bought-in or third-party marketing lists unless due diligence confirms that the data was collected lawfully, the intended marketing is within the recipient's expectations, valid PECR permission exists, UK GDPR requirements are met, and suppression checks have been completed. The PECR soft opt-in cannot be used for bought-in lists.

PECR:

4.1 PECR remains in force and should be read alongside the UK GDPR and Data Protection Act 2018. Squaricle Group will check current ICO guidance before starting new direct marketing, cookie or tracking activity..

4.2 This means that if you send electronic marketing or use cookies or similar technologies you must comply with both PECR and the UK GDPR. Naturally, there is some overlap, given that both aim to protect people's privacy. Complying with PECR will help you comply with the UK GDPR, and vice versa – but there are some differences and you must make sure you comply with both. In particular, it's important to realise that PECR apply even if you are not processing personal data. For example, many of the rules protect companies as well as individuals, and the marketing rules apply even if you cannot identify the person you are contacting. Electronic mail marketing includes emails, texts, picture or video messages, app messages and direct messages sent through social media or similar platforms

4.3 Cookies, pixels, tags, scripts, local storage, fingerprinting and similar technologies must not be used unless Squaricle Group has provided clear information and obtained valid consent where required. Strictly necessary technologies may be exempt where they are essential to provide a service requested by the user.

Other forms of direct marketing:

5.1 Before live marketing calls, Squaricle Group will screen numbers against TPS, CTPS where applicable, and its internal do-not-call list. Automated marketing calls must not be made without specific prior consent.

5.2 Postal marketing must have a documented UK GDPR lawful basis, normally legitimate interests where appropriate, and must respect objections, suppression records and privacy notice requirements.

Auditing:

We know what cookies our online service either already uses or intends to use.

We have removed any cookies that we don't need.

We have confirmed the purposes of each cookie.

We identify what information each cookie processes, including whether they are linked to other information we hold about our users or otherwise involve processing personal data.

Where personal data is involved, we have ensured that we process this data in line with the requirements of the UK GDPR.

We have confirmed whether our cookies are session or persistent cookies.

We have confirmed whether our cookies are first party or third party cookies.

Before using third-party cookies, pixels, analytics, advertising or tracking tools, Squaricle Group must assess the provider's role, data shared, lawful basis, consent requirements, contract terms, international transfers, retention and information provided to users.

We have established how long our cookies last and that this duration is appropriate.

We have identified those cookies that are strictly necessary, and those that are not.

Complaints / Objections

Any marketing objection, unsubscribe issue, data subject rights request, complaint or suspected marketing-related data breach must be escalated promptly to the Data Protection Lead. Squaricle Group will handle data protection complaints in line with UK data protection law and ICO guidance

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